

Here are answers to some frequently asked questions about the dairy export journey. You can submit your own question at the end of this page.

A [dairy exporters welcome pack](#) to aid dairy manufacturers looking to become export registered is available. This welcome pack helps to improve industry's understanding of requirements and expectations when applying for dairy export registration.

For those wanting to better understand export requirements and how to obtain Dairy Export registration you can access the [Dairy Export Registration Manual \(DERM\)](#). The DERM provides a deep dive into each element of an [approved arrangement](#) to help manufacturers and exporters to better understand the requirements and obligations for becoming export registered and meeting export and importing country requirements.

Initial questions

Export commodities controlled by us are listed or 'prescribed' in the legislation ([Export Control Act 2020](#)). The legislation sets out the list of requirements that must be met by an exporter before prescribed goods can be exported from Australia.

A prescribed dairy product is any dairy product that is manufactured in Australia intended for human consumption and where the major ingredient is dairy. Non-prescribed goods, such as some processed foods and pet food, do not need to meet these requirements for export. All premises where prescribed goods are prepared for export, including storage facilities and freight forwarders, must be registered.

We provide a [free export facilitator service](#). Our export facilitator helps dairy manufacturers to become export registered.

Everyone's journey to becoming export registered is different. Typically, it takes an average of 10 months to become export registered. Establishments that have engaged with the department's [Export Facilitator](#) have experienced a reduction in the time it takes to become export registered, as they are better informed and prepared for the application process.

The department strongly encourages all entities seeking export registration for dairy products to contact the [Dairy Export Facilitator](#).

No – depending on which markets you are intending to export to, an importing country may have requirements for dairy products that are alternative or additional to those stated in Australia's export laws and food standards. Under our export laws, dairy manufacturers and exporters must meet these importing country requirements. Your approved arrangement must identify your export markets and the systems in place at the establishment for confirming that all relevant importing country requirements are met (more information on approved arrangements is covered in the next section - Application process questions). You can search our [Manual of Importing Country Requirements \(Micor\)](#) to find known requirements for exporting dairy products to a large variety of overseas markets. Some importing country authority websites may also be a source of information on their specific

requirements and regulations. We recommend that you confirm requirements with your importer before exporting your products.

Application process questions

The application form to register an establishment for export and/or approve a proposed arrangement is the [EX26a form](#).

The application form will ask for some specific information relating to the establishment you wish to register:

- your establishment's address,
- business administrative details,
- the type of commodities and operations,
- details of persons nominated to be in management and control of the establishment,
- declarations of compliance for persons nominated
- indication of the establishment's current status

See more about [how to register an establishment for export or approve a proposed arrangement](#).

All export registered establishments involved in preparing, handling and storing prescribed dairy products must have an [approved arrangement](#) (AA).

An AA is a documented food safety management system which describes how an establishment manages food safety and traceability. Your AA must document how your establishment will comply with:

- export legislation, and
- importing country requirements.

When applying to become an export registered establishment, you will need to submit your proposed AA to us for assessment and approval. Once we approve the arrangement, your establishment can become export registered.

The [Departmental Charging Guidelines](#) provide instruction about the application of the department's biosecurity and export fees and charges applicable to all programs. Specifically, section 6.5 – details the Export Cost Recovery Arrangements for dairy. For more information on how these fees and charges may change over the coming years for dairy exporters, see section 5.2 of the [Cost Recovery implementation statement: dairy exports 2021-22](#).

Application charges are detailed in section 6.1.2 – New applications to register an establishment in the [Departmental Charging Guidelines](#). As at March 2022 the application charge for dairy export registration is \$640.

Audit related questions

All parts of an establishment's export operations are documented in the establishment's AA. Initial audits are conducted against a defined scope, made up of all topics (known as elements) covered in the establishment's AA. The auditor checks and verifies that the controls for each requirement are in place and effective. [About audits](#).

Yes – the auditor will be in touch with you ahead of the audit to provide you with what the scope of the audit covers (in broad terms) and the approximate time in days that the audit will take. You will not be provided with a detailed audit plan or scope as this will have previously been provided to you with the AA audit guideline.

You will receive a clear explanation of the scope and structure of the audit during the audit entry meeting.

If you are not approved after the initial audit, this means that the auditor identified findings where parts of your AA or premises did not meet requirements. The auditor will explain these findings to you during the audit and within the audit report that you will receive after the audit. If you wish to continue with the process to become export registered, you must address any findings and provide evidence to the auditor to be reviewed in a follow-up audit.

No – an establishment's registration is linked directly to its physical address, so if you have multiple establishments at different locations, each establishment is treated as unique and will require separate registration (and its own AA) and therefore a separate audit.

You need to ensure that the key staff responsible for managing your AA will be available to assist during the audit. This often includes positions such as Site Managers or QA Managers, however for some elements, other staff may be required (e.g. Maintenance or Production Managers). The auditor may also ask questions to operators during their site walkthrough.

Yes – this is essential because when you are export registered, you will be registered for specific product types. The auditor needs to verify the processes and controls in place for the product types you wish to be registered for. It is your responsibility to ensure that relevant production will be taking place at the time of the audit. If you have any concerns about this, you should contact your auditor as soon as possible.

Yes – you should have a discussion with the [Export Facilitator](#) to identify when you expect to be “audit-ready”. Based on your readiness, an auditor will contact you to confirm a suitable date for the audit. The audit date needs to work for both you and the auditor, so please remember to keep in touch with your auditor if any changes to your availability arise.

Our auditors will get in touch with you to confirm the audit date at least 4 weeks ahead of the proposed date.

No - Commercial audits have a variety of different scopes and different standards and requirements. They cannot be combined.

It's also not possible to combine a domestic regulatory audit with an initial export registration audit, as they also have different scopes.

No - It's not reasonable or practical for our auditors or other establishment staff required for the audit to conduct the audit during a night shift.

Yes - There are extra costs if further work or audits are required. Establishments are charged for the time taken for the auditor to prepare for and conduct the audit, write the audit report and any time spent reviewing any additional documents or evidence submitted following the audit. These activities are charged in 15 minute increments, as detailed in section 6.5.2 of the [Departmental Charging Guidelines](#).

After export registration questions

Audit frequency depends on the type of registered establishment. Establishments undertaking higher risk operations are audited more frequently. Dairy processing establishments fall into the category of high risk, and are audited biannually (approximately once every 6 months). Establishments that only store dairy products are considered low risk, so they are audited once a year. [Find out more about audit frequency](#).

We're the regulatory authority responsible for the initial approval and ongoing verification of export registered establishments. For dairy processing establishments, we have agreed service delivery arrangement agreements in place with several of the state regulatory authorities. This means that in some states, after we've approved you for export registration, your state regulatory authority will be responsible for conducting ongoing export audits of your establishment. For states where such arrangements are not in place, our auditors will conduct the ongoing export audits for establishments in these states. Find out more about our [audit arrangements](#).

The scope of the ongoing export audit will be different to the initial approval audit. Whilst the elements will be the same, the initial audit assesses that there is an effective documented system in place to manage compliance with export and importing country requirements. The ongoing audits ensure that the documented systems is not only being managed, but effectively implemented and verified as being effective. The other main difference is that the initial audit covers all elements in the one audit, whilst the ongoing audit will split the elements over 2 consecutive audits for high-risk establishments (manufacturers), and all elements annually for low risk storage establishments. Where there are areas of significant non-compliance, additional audits may be undertaken to ensure effective corrective action has been taken.

This depends on which regulatory authority is responsible for conducting the audits, and how long the audit takes. For ongoing audits conducted by us the time-based cost is described in section 6.5.2 of the [Departmental Charging Guidelines](#).

If a state regulatory authority conducts your ongoing export audits, you may find audit cost information on their website or via your auditor.

Not always - Audits can be conducted in several ways:

- Onsite – this is always the preferred/default method, as it allows for a more robust and streamlined experience.
- Desktop/remote – this method should only be used if extenuating circumstances prevent the auditor from attending the site.

If you wish to manufacture new product types for export that you are not currently registered for, then you will need to go through a registration variation process (either with the department or your state regulatory authority, depending on which agency does your ongoing export audits). The regulator will assess that you have adequate controls in place to manufacture the new product/s, and that you have incorporated the required changes in your AA. This process will require an onsite audit. For variation assessments conducted by a state regulatory authority, you will still require final written approval of the variation from the department before your registration is updated to reflect the change. For any proposed variation it is strongly recommended that you approach the [Export Facilitator](#) in the first instance.

Some importing countries have specific requirements that you must meet before you can export to that country. This could include the need for your establishment to be “listed” with the importing country authority.

The following list identifies countries where dairy products are often exported to that requires the dairy processing establishments to be listed with the government authority. This list is not exhaustive:

- Brazil
- Chile
- China
- European Union/United Kingdom (EU/UK)
- Indonesia
- South Korea
- Malaysia
- Russia
- Singapore
- Panama
- El Salvador

You can find information on listing requirements, including the application process, in our Manual of Importing Country Requirements ([Micor](#)). We recommend that you contact the [Export Facilitator](#) for help before starting your listing application. The export facilitator can help you meet any additional importing country requirements that may relate to manufacturing processes, packaging, testing and certification.

You must maintain the currency of your establishment’s registration details. Let us know about changes to the establishment’s contact details or persons in management and control of the establishment. You must [submit an EX26b form](#) that details the changes.

A change to the legal entity of an establishment where the ACN changes will mean that a new registration will need to occur for the new legal entity (occupier). This may mean that as the new occupier, you will need to go through the whole registration process including audits with the Department. If the first instance, you are looking at taking the ownership/ management of a current registered establishment, make contact with the [Export Facilitator](#).

An establishment is registered on an ongoing basis provided it complies with all the requirements relevant to its export registration. If the certificate of registration specifies a limited period for which the establishment will be registered, the establishment will cease to be registered at the expiration of that period. In most cases, no expiration date will be specified. Instead, each financial year you will be provided with the opportunity to deregister the establishment, otherwise you must pay the annual registration fee to [maintain your establishment's registration](#).

We publish changes to export or importing country requirements as they arise via [industry advice notices and market access advice notices](#). You can also sign up to our [mailing subscription service](#) to get email updates.

NEXDOC is our New Export Documentation System. Exporters of dairy products are required to use NEXDOC.

NEXDOC generates export documents that you will need when exporting your products. These may include:

- export permits
- certificates and related documents as required by importing countries.

There are three ways you can access NEXDOC:

Find out more about how to [register on NEXDOC](#).

When your dairy products are ready for export, you need to make a Request for Export (REX) using our [Next Export Documentation System](#) (NEXDOC) to obtain your required export documentation. An export permit must be obtained before the goods are shipped from Australia. Depending on the country you are exporting to, you may also need additional certification that contains specific endorsements. You can see [Micor](#) for more information on country-specific certification requirements.

You will also need to maintain evidence of your products' export eligibility, including a manufacturer's declaration of compliance. When you make a REX, you will have the opportunity to provide any additional required documentation to demonstrate the export eligibility of your products.

If you are selling your dairy products to be exported by a third party then there are a number of things that you as the manufacturer are responsible for undertaking. When the goods are transported to an external storage facility, that facility must be export registered with the department, and must be issued with a transfer document by the manufacturer to demonstrate that the product has been maintained in the export chain. When the products are to be exported the manufacturer must provide the exporter

with a “declaration of compliance”, which indicates that the product is export eligible and complies with all export and importing country requirements.

When your dairy products are ready for export, the exporter will need to make a Request for Export (REX) using our [Next Export Documentation System](#) (NEXDOC) to obtain your required export certification. You must get an export permit before the goods are shipped from Australia. Depending on the country you are exporting to, you may need additional certification that contains specific endorsements. Check [Micor](#) for information on country-specific certification requirements.

Other FAQs

If you have questions that are not answered here, we'd love to hear from you. [Contact us](#) and we'll be in touch.

Source: <https://www.agriculture.gov.au/biosecurity-trade/export/controlled-goods/dairy/welcome-pack/frequent-questions>